

104	2025-01468006 Jetset Group Inc. vs. Firm Foundation Aviation, LLC	Motion for Attorney Fees Plaintiff Jetset Group, Inc.’s motion for attorney fees is denied. Plaintiff submitted its request for attorney fees with its request for a default judgment. The Court already ruled on Plaintiff’s request, awarding Plaintiff a total of \$51,539.13, comprised of damages and costs. The Court did not award Plaintiff its attorney fees. (ROA 45.) Plaintiff does not move for the Court to reconsider its decision pursuant to Code Civ. Proc., § 1008. Therefore, as there are no grounds to now award Plaintiff its attorney fees, the motion is denied.
106	2025-01469578 Ghent vs. General Motors LLC	Motion for Leave to File Amended Complaint Plaintiff Heather Ghent’s Motion for leave to file a first amended complaint against Defendant General Motors LLC is granted. Plaintiff is ordered to file and serve the First Amended Complaint within 10 days. Plaintiff is also ordered to give notice.
107	2022-01291454 T. vs. Mcfarland	Motion to Strike or Tax Costs Plaintiff’s motion to tax costs claimed by Defendant Cynthia Macfarland is granted in part and denied in part. The right to recover costs of suit is determined entirely by statute. (Code Civ. Proc., § 1032 et seq.) Unless otherwise expressly prohibited by statute, a prevailing party is entitled to recover costs as a matter of right. (Code Civ. Proc., § 1032, subd. (b).) Code of Civil Procedure section 1033.5, subdivision (a) specifies cost items that are allowable, including filing and motion fees, deposition costs, and court reporter fees. (Code Civ. Proc., § 1033.5, subd. (a)(3).) Allowable costs “shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation” and “reasonable in amount.” (Code Civ. Proc., § 1033.5, subd. (c).) If the items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary. (<i>Ladas v. California State Auto. Assn.</i> (1993) 19 Cal.App.4th 761,774-776; <i>Jones v. Dumrichob</i> (1998) 63 Cal.App.4th 1258, 1266 [mere statements in points and authorities and declaration of counsel insufficient to rebut prima facie showing]; see <i>Wagner Farms, Inc. v. Modesto Irrigation Dist.</i> (2006) 145 Cal.App.4th 765, 777-778 [prevailing defendant properly awarded its photocopying costs which were supported by invoice from copy company, when plaintiffs failed to present any evidence showing that copying could have been done for less]. On the other hand, items that are properly objected to are put in issue, and the burden of proof is on the party claiming them as costs. (<i>Ladas v. California State Auto. Assn., supra</i>, 19 Cal.App.4th at pp. 774-776.) <u>Expert Witness Fees</u>